

A “permissive” cross-complaint, on the other hand, is one against a new party or one where the proposed claims do not relate to the same series of events as the initial party’s complaint, and is given leave for filing only in the court’s discretion. (Code Civ. Proc., § 428.50, subd. (c) [“interests of justice” standard]; *Orient Handel v. United States Fid. & Guar. Co.* (1987) 192 Cal.App.3d 684, 701.)

Defendant’s proposed cross-complaint does not relate to the same transactions or occurrences as Plaintiff’s complaint. Plaintiff’s complaint states common counts and concerns an alleged credit account debt Defendant owes to Plaintiff. Defendant’s proposed cross-complaint alleges various causes of action stemming from an alleged breach of Plaintiff’s consumer data records in 2019 and Plaintiff’s failure to inform its customers of the breach. Thus Defendant’s proposed cross-complaint is a permissive cross-complaint and leave is a matter of the court’s discretion.

Trial is presently set in this matter for October 14, 2026. Defendant’s cross-complaint would tremendously expand the scope of this otherwise simple and straightforward common counts case as it would require litigation on wide-ranging questions about Plaintiff’s data security practices, customer interactions, and more. Further, Defendant does not explain why he waited until 2026 to seek leave to file his cross-complaint concerning an event from 2019 and in this case where he filed an answer to Plaintiff’s complaint in 2024.

Defendant’s motion for leave to file a cross-complaint is denied.

JEFFERSON CAPITAL SYSTEMS LLC v. ASHLEY OWENS
Case No. CL25-02540

Motion to Deem Requests for Admissions Admitted

TENTATIVE RULING

The motion is GRANTED.

Each of the requests in the requests for admissions is hereby deemed to be admitted.

SHEA HUGHES et al. v. TVI, INC. et al.
Case No. CU23-05591

Motion for Preliminary Approval of PAGA & Class Action Settlement

TENTATIVE RULING

Plaintiffs SHEA HUGHES and JOSE VILLANUEVA move for preliminary approval of the settlement reached with Defendants TVI, INC., SAVERS RECYCLING, INC., and